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Amending Acts

1. Building (First Amendment) Act, 2064 2064.5.14
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
3. Some Nepal Acts Amendment Act, 2072 2072.11.13
4. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act No. 2 of the year 2055

An Act Made to Provide for Regularizing Building Construction Works

Preamble: Whereas it is desirable to make necessary provisions for regularizing building construction works in order to keep buildings as safe as possible from earthquake, fire and other natural calamities,

Now, therefore, Parliament has enacted this Act in the twenty-seventh year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the 'Building Act, 2055'.

(2) This Act shall commence in the areas specified by the Government of Nepal by notification published in the Nepal Gazette from the date so specified. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) 'Building' means any physical structure constructed for residential, industrial, commercial, office, assembly hall, hospital, cold storage, warehouse or any other use, and the word also denotes any part of such structure.

(b) 'Building Code' means the National Building Code approved by the Government of Nepal pursuant to sub-section (2) of Section 9.

(c) 'Building Construction' means constructing a new building, demolishing an old building and rebuilding it, adding a storey, changing the facade, or making additions or alterations to windows, doors, balcony, courtyard, veranda, etc. in an existing building, or other related works.

(d) 'Committee' means the Building Construction Management Strengthening Committee constituted pursuant to Section 3.

(e) 'Plan' means all drawings, descriptions and other documents relating to building construction.

(f) 'Municipality' means a municipality constituted pursuant to the prevailing law, and the word also includes

a metropolitan municipality and a sub-metropolitan municipality.

(g) ?Government Body? means a ministry, secretariat, department or office of the Government of Nepal, and the word also includes a commission, council and committee constituted pursuant to the prevailing law. Amended by the First Amendment.(h) ?Urban Development Office? means the Urban Development and Building Construction Division Office. 3.

Constitution of Building Construction Management Strengthening Committee: (1) The Government of Nepal shall constitute a Building Construction Management Strengthening Committee for strengthening the management relating to building construction. (2) The Committee referred to in sub-section (1) shall consist of the following Chairperson and members:- (a) Secretary, Amended by the Some Nepal Acts Amendment Act, 2075.Ministry of Urban Development ? Chairperson (b) Representative, National Planning Commission ? Member Amended by the First Amendment.(c) Representative, Ministry of Law, Justice and Parliamentary Affairs ? Member (d) Member-Secretary, Nepal Quality Council ? Member (e) Dean, Institute of Engineering ? Member Amended by the First Amendment.(f) Joint Secretary, Amended by the Some Nepal Acts Amendment Act, 2075.Ministry of Federal Affairs and General Administration (looking after Municipal Division) ? Member (g) Chief, Centre for Applied Science and Technology Research ? Member (h) Up to three persons nominated by the Amended by the Some Nepal Acts Amendment Act, 2075.Ministry of Urban Development from among persons having special knowledge of building construction ? Members Amended by the First Amendment.(i) Director General, Department of Urban Development and Building Construction ? Member-Secretary (3) Deleted by the First Amendment. (4) The Committee may, if it deems necessary, invite concerned domestic or foreign experts or any other person to participate as an observer in the meeting of the Committee. (5) The Amended by the First Amendment.Department of Urban Development and Building Construction shall function as the secretariat of the Committee. 4.

Functions, Duties and Powers of the Committee: Except as otherwise provided elsewhere in this Act, the functions, duties and powers of the Committee shall be as follows:- (a) To regulate building construction works in order to minimize as far as possible damage that may be caused to buildings by earthquake, fire and other natural calamities, (b) To formulate the Building Code for regulating building construction works and submit it to the Government of Nepal for approval, (c) To carry out or cause to be carried out necessary studies and research for making timely improvements in the Building Code or for developing processes or technologies relating to building construction, Amended by the First Amendment.(d) To cause inspection as to whether plans have been approved or not in accordance with the standards mentioned in the Building Code, (e) To recommend to the Nepal Quality Council for determining the quality of domestic or foreign materials relating to building construction, (f) To hold or cause to be held meetings or workshops involving technical experts and employees of concerned bodies for timely improvement of problems encountered in the implementation of the Building Code, (g) To inform the general public about the utility of the Building Code through various means, (h) To carry out or cause to be carried out other necessary works for implementing the objectives of this Act. 5. Meetings and Decisions of the Committee: (1) A meeting of the Committee shall be held on such date, time and place and as often as necessary as determined by the Chairperson of the Committee. (2) The Member-Secretary of the Committee shall give notice including the agenda to all members at least three days before the meeting of the Committee. (3) If fifty percent of the total number of members of the Committee are present, that shall constitute a quorum for the meeting of the Committee. (4) The meeting of the Committee shall be chaired by the Chairperson of the Committee, and in his/her absence, by a member chosen by the members of the Committee from among themselves. (5) The opinion of the majority shall prevail at the meeting of the Committee, and in case of a tie, the person chairing the meeting

shall have a casting vote. (6) The names of members present, subjects discussed, and decisions made at each meeting of the Committee shall be recorded in a decision book and kept after being signed by the members present. (7) The decision of the Committee shall be certified by the Member-Secretary of the Committee. (8) Other procedures relating to the meetings of the Committee shall be as determined by the Committee itself. 6.

Power to Constitute Sub-Committees: (1) The Committee may constitute various sub-committees including concerned expert persons as necessary to carry out or cause to be carried out any of its works. (2) The functions, duties and powers of the sub-committees constituted pursuant to sub-section (1) shall be as specified by the Committee. 7. Meeting Allowance: Members of the Committee and sub-committees constituted pursuant to Section 6 and invited persons shall be entitled to meeting allowance as determined by the Government of Nepal for participating in meetings. Amended by the First Amendment. 8. Classification of Buildings: For the purpose of formulating and implementing the Building Code, buildings shall be classified into four classes as follows:- (a) Class 'A': State-of-the-art buildings constructed based on the international state of art following building codes adopted in developed countries as well. (b) Class 'B': Buildings with a plinth area exceeding one thousand square feet, more than three storeys including the ground floor, or a structural span exceeding four point five (4.5) meters. (c) Class 'C': Buildings with a plinth area up to one thousand square feet, up to three storeys including the ground floor, or a structural span up to four point five (4.5) meters. (d) Class 'D': Small houses, huts constructed up to two storeys using raw or burnt bricks, stone, mud, bamboo, thatch, etc., other than those mentioned in clauses (a), (b) and (c). 9. Building Code to be Approved: (1) The Committee shall prepare a Building Code based on the classification of buildings mentioned in Section 8 and submit it for approval to the Government of Nepal, Amended by the Some Nepal Acts Amendment Act, 2075. Ministry of Urban Development. (2) The Building Code submitted pursuant to sub-section (1) shall come into force after being approved by the Government of Nepal, Amended by the Some Nepal Acts Amendment Act, 2075. Ministry of Urban Development. 10. Building Construction to be in Accordance with Building Code: Any person, institution or government body constructing a building shall construct it in accordance with the standards specified in the Building Code. Added by the First Amendment. While constructing a building in such manner, the construction shall be carried out under the supervision of a designer, engineer or architect of at least the same level as the designer, engineer or architect who certified the plan and design of that building. Amended by the First Amendment. 11.

Provisions Relating to Approval of Design and Plan of Building: (1) Any person, institution or government body desiring to construct a building of Class 'A', 'B' or 'C' mentioned in Section 8 within a municipality area shall, while applying for approval pursuant to the prevailing law for building construction to the municipality, submit the design along with the plan. (2) Amended by the Some Nepal Acts Amendment Act, 2072 and commenced from the date notified in the Nepal Gazette published on 2074.2.8. Any person, institution or government body desiring to construct a building of Class 'A' or 'B' mentioned in Section 8 within a rural municipality area where this Act has been enforced shall prepare the building plan and design and get it approved from the Urban Development Office. Provided that, in the case of a Class 'C' building, while applying for plan approval pursuant to the prevailing law, a plan in accordance with the Building Code shall be submitted. (3) The plan and design of a building submitted pursuant to sub-section (1) or (2) shall be certified to be in accordance with the Building Code by the following persons:- (a) In the case of a building of Class 'A' mentioned in Section 8, by the concerned designer, (b) In the case of a building of Class 'B' mentioned in Section 8, by a civil engineer or architect registered with the Nepal Engineering Council, (c) In the case of a building of Class 'C' mentioned in Section 8, by a person who has passed at least a certificate level in civil engineering or architecture from a recognized educational institution. Amended by the First

Amendment.12. Plan Not to be Approved Contrary to Standards: (1) A municipality shall not approve a plan contrary to the standards mentioned in the Building Code. (2) The Urban Development Office may carry out necessary inspection as to whether the municipality has approved plans in accordance with the Building Code or not. (3) If it is found during inspection pursuant to sub-section (2) that a municipality has approved a plan contrary to the Building Code, the Urban Development Office shall submit a report thereof to the Committee. (4) If the report received pursuant to sub-section (3) appears reasonable upon inquiry, the Committee shall write to the concerned municipality to get the plan approved in accordance with the Building Code. (5) If a letter is received pursuant to sub-section (4), the concerned municipality shall also get the plan approved accordingly. 13.

Supervision of Building Construction: (1) In respect of whether any person, institution or government body has constructed a building in accordance with the standards specified in the Building Code or not, Added by the First Amendment.within a municipality area, the municipality, and Amended by the Some Nepal Acts Amendment Act, 2072.within a rural municipality area, the Urban Development Office, may carry out supervision. (2) While carrying out supervision pursuant to sub-section (1), if Added by the First Amendment.the municipality or the Urban Development Office finds that the construction of any building is not in accordance with the standards specified in the Building Code, it may give necessary directions to the concerned person, institution or government body constructing the building, and it shall be the duty of the concerned person, institution or government body to comply with such directions. 14. Penalty: Amended by the First Amendment.(1) If anyone constructs a building without getting the plan approved pursuant to this Act or contrary to such approved plan or the standards mentioned in the Building Code, within a municipality area, the municipality, and Amended by the Some Nepal Acts Amendment Act, 2072.within a rural municipality area, the Urban Development Office, shall order to immediately stop such construction work. Amended by the First Amendment.(2) If anyone constructs a building without getting the plan approved pursuant to this Act or contrary to such approved plan or the standards mentioned in the Building Code, the municipality or the Urban Development Office may order to demolish such building or any part thereof and may impose a fine of up to fifty thousand rupees on the person or institution doing such act. (3) If an order to demolish any part of a building construction has been given by Added by the First Amendment.the municipality or the Urban Development Office pursuant to sub-section (2), until that part is demolished, the municipality or the Urban Development Office shall write to the concerned offices to attach such property so that no person may transfer or mortgage the same for any reason, and to discontinue the supply of water, electricity, telephone, etc. to such constructed building, and even if such supply has already been provided, to cut off the lines of such water, electricity, telephone, etc., and the concerned offices shall also act accordingly upon receiving such letter. Amended by the First Amendment. (The Nepali text has "?????" but translation follows.) 15.

Appeal: A person dissatisfied with the order given by Amended by the First Amendment.the municipality or the Urban Development Office pursuant to sub-section (2) of Section 14 may file an appeal to the concerned Amended by the Some Nepal Acts Amendment Act, 2072.District Court within thirty-five days from the date of receipt of such order. 16. Demolition of Building and Recovery of Expenses Incurred: (1) If an order has been given to demolish any building or any part thereof pursuant to sub-section (2) of Section 14, and if an appeal has been filed against such order pursuant to Section 15, the concerned person, institution or government body shall demolish such building or any part thereof within thirty-five days from the date of the decision of the Amended by the Some Nepal Acts Amendment Act, 2072.District Court ordering the demolition of such building or any part thereof; and if no appeal has been filed, within thirty-five days from the date of expiry of the limitation period for appeal. (2) If the concerned person, institution or government body fails to demolish

such building or any part thereof within the period mentioned in sub-section (1), Added by the First Amendment.the municipality or the Urban Development Office itself may demolish such building or any part thereof, and the expenses incurred in such demolition shall be recovered from the concerned person or institution as a government due. Amended by the First Amendment.(3) If, while demolishing a building or any part thereof by the municipality or the Urban Development Office pursuant to sub-section (2), despite making diligent efforts, more part than the part required to be demolished gets demolished, the municipality or the Urban Development Office shall not be held liable, and the concerned person shall not be entitled to claim compensation for any damage caused by such demolition of more part than required. Added by the First Amendment.(4) While demolishing a building or any part thereof by the Urban Development Office pursuant to sub-section (2), it shall be demolished in the presence of the Chairperson, Vice-Chairperson or the concerned Ward Chairperson of the concerned Amended by the Some Nepal Acts Amendment Act, 2072.rural municipality, and if they are not available or not present, in the presence of the Secretary of the Amended by the Some Nepal Acts Amendment Act, 2072.rural municipality, and if he/she is also not present, in the presence of at least four local residents. Amended by the First Amendment.17.

Assistance to be Given: If any person obstructs or opposes while the municipality or the Urban Development Office demolishes a building or any part thereof pursuant to sub-section (2) of Section 16, the municipality may seek assistance from the local administration, and the Urban Development Office may seek assistance from the local administration and the concerned Amended by the Some Nepal Acts Amendment Act, 2072.rural municipality, and upon such request for assistance, necessary assistance shall be provided to the municipality or the Urban Development Office. Amended by the First Amendment.18. Notice to be Published: (1) The Government of Nepal shall publish a notice in the Nepal Gazette informing the general public about the enforcement of the Building Code. (2) After the publication of the notice pursuant to sub-section (1), any person desiring to obtain a copy of the Building Code may obtain a copy from the Urban Development Office upon payment of the prescribed fee. 19. Delegation of Powers: The Committee may, as necessary, delegate some of the powers conferred to it under this Act to members of the Committee or sub-committees constituted pursuant to Section 6, a government body, municipality, Urban Development Office or any other authorized employee. 20. Power to Give Directions: (1) The Government of Nepal may give necessary directions to the Committee relating to the formulation and implementation of the Building Code. (2) It shall be the duty of the Committee to comply with the directions given by the Government of Nepal pursuant to sub-section (1). 21. To be Governed by this Act: Matters provided for in this Act shall be governed by this Act, and other matters by the prevailing law. 22. Power to Make Rules: The Government of Nepal may make necessary rules for implementing the objectives of this Act.